



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

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December 5, 2012

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Oskar Rodriguez**
Tax Registry No. 919639
Transit Bureau Bronx/Queens Task Force
Disciplinary Case No. 2010-2372

The above named member of the service appeared before Assistant Deputy Commissioner Robert W. Vinal on March 9, 2012 and was charged with the following:

DISCIPLINARY CASE NO. 2010-2372

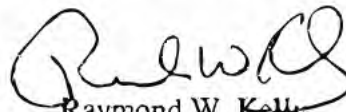
1. Said Police Officer Oskar Rodriguez, while assigned to Transit Borough Bronx, while on-duty, on or about October 29, 2009, in the vicinity of River Avenue between 157th and 158th Streets in Bronx County, after issuing a summons to a Person A for unlicensed vending, said Police Officer confiscated approximately eighteen t-shirts from Person A, and failed to prepare a Property Clerk's Invoice Worksheet (PD521-141A), as required.

P.G. 218-01, Page 1, Paragraph 3

**INVOICING PROPERTY GENERAL
PROCEDURES**

In a Memorandum dated May 10, 2012, Assistant Deputy Commissioner Robert W. Vinal found the Respondent Guilty of Specification No. 1 in Disciplinary Case No. 2010-2372.

Having read the Memorandum and analyzed the facts of these matters, I approve the findings, but disapprove the recommended penalty. The Respondent is to forfeit twenty (20) Vacation days, as a disciplinary penalty, for the misconduct in this matter.


Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

May 10, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Oskar Rodriguez
Tax Registry No. 919639
Transit Bureau Bronx/Queens Task Force
Disciplinary Case No. 2010-2372

The above named member of the Department appeared before me on March 9, 2012, charged with the following:

1. Said Police Officer Oskar Rodriguez, while assigned to Transit Borough Bronx, while on duty, on or about October 29, 2009, in the vicinity of River Avenue between 157th and 158th Streets in Bronx County, after issuing a summons to a Person A for unlicensed vending, said Police Officer confiscated approximately eighteen t shirts from Person A, and failed to prepare a Property Clerk's Invoice Worksheet (PD521-141A), as required.

P.G. 218 01, Page 1, Paragraph 3 - INVOICING PROPERTY GENERAL PROCEDURES

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through his counsel, entered a plea of Guilty to the subject charge and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent testified that he was appointed to the Department on April 15, 1997. Upon graduation from the Police Academy, he was initially assigned to the 43 Precinct. He was then transferred to the 42 Precinct where he worked for about ten years. From the 42 Precinct, he was transferred to his current command, the Bronx Transit Task Force.

While Respondent was assigned to the 42 Precinct, for about nine years he was regularly detailed to the Yankee Stadium Detail on game days. Respondent generally worked in the area surrounding the stadium. Respondent described his responsibilities while performing the Yankee Stadium Detail as “basically pedestrian traffic, safety, overall safety of fans surrounding the area.”

On the evening of October 29, 2009, Respondent was assigned to the Yankee Stadium Detail. That night was the last game of the World Series, which the Yankees won. Prior to commencing his tour, his supervisor had instructed the detail regarding certain things to be on the look out for, including unlicensed vendors and counterfeit products. He was also advised that Major League Baseball (MLB) representatives would be present outside the stadium to assist in identifying unlicensed vendors and counterfeit products.

Soon after the game ended, as fans were filing out of the stadium, a MLB representative approached Respondent outside the stadium and pointed out a man who was selling t-shirts to fans out of a bag. Respondent approached the man and inquired if he had a vendor's license. The man, who identified himself as Person A, was not able to produce any identification that he was a licensed vendor. Respondent issued a summons to Person A for unlicensed vending and confiscated the bag he was holding which contained 18 knock-off "New York Yankees World Champions" t-shirts. Respondent placed the shirts inside the trunk of a radio motor patrol car (RMP) that he had parked nearby. Respondent testified that he had intended to voucher the shirts that he had confiscated.

Respondent recalled that because the game had just ended and the Yankees had won the World Series, the scene outside the stadium was "very chaotic" and that in addition to the many fans who had attended the game and were lingering in the parking lot, celebrating, Yankee fans who lived in the area near the stadium began entering the parking lot and entering nearby streets to celebrate. Because the area surrounding the stadium became very crowded and chaotic, Respondent resumed his assignment, which was to maintain control, provide security for nearby establishments, insure the safety of pedestrians and direct vehicular traffic. Respondent recalled that this chaotic scene continued for over two hours after he had placed the bag of shirts in the trunk of the RMP.

Respondent then resumed patrol and when he eventually ended his tour he was exhausted. Prior to ending his tour that night, he did not go back to the trunk of the RMP and retrieve the shirts. He did not prepare a Property Clerk's Invoice Worksheet, as he

was required to do, nor did he voucher the shirts. Respondent testified that he simply forgot to voucher the shirts. Respondent stated, "It was a mistake. I completely forgot about the property being there." Respondent was never notified by the Bronx District Attorney's Office to appear to testify regarding the summons he had issued to Person A.

Respondent later learned that Person A had appeared in court in response to the summons; that the summons was dismissed; and that Person A had tried to retrieve his shirts but the shirts were never located and Person A was never able to reclaim his property.

On cross-examination, Respondent acknowledged that the procedures for vouchering property confiscated by officers assigned to the Yankee Stadium Detail were the same procedures for vouchering property that patrol officers must follow. Respondent agreed that he was required to prepare a Property Index for any property he recovered. Respondent confirmed that the procedure for vouchering property involved two steps: filling out a voucher form and then entering it into the Property Index. Respondent did not enter the shirts on the Property Index because he never vouchered the shirts.

Respondent confirmed that he had the keys to the RMP into which he had placed the shirts and that he also drove this RMP. Upon completion of his tour, he drove the RMP to his command. When he returns a vehicle to his command, he simply parks the vehicle and turns the keys in at the desk. He does not look in the back seat area or the trunk before he turns in the RMP unless he has transported a prisoner during his tour. No one else was in the vehicle from the point in time when he parked the RMP outside the stadium until he returned it to his command. He did not have an assigned partner for

that tour but many officers were working with him outside the stadium. He did not open the trunk of the RMP at any time after he placed the shirts inside the trunk. He never told anyone about the shirts that he had placed in the trunk of the RMP.

On redirect examination, Respondent testified that whether he would immediately voucher property he had seized or whether he would wait until the end of his tour to voucher it depended on the circumstances. If he seized shirts being sold by an unlicensed vendor during the second inning of a Yankee game being played on a cold, April evening and it was quiet outside the stadium, he would immediately voucher the shirts.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on April 15, 1997. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has admitted his misconduct by pleading guilty. The Assistant Department Advocate (the Advocate) recommended that Respondent forfeit 20 vacation days.

Based on Respondent's credible mitigation testimony, and the penalties that have been imposed in previous cases where members have pleaded guilty to having failed to prepare Property Clerk's Invoice Worksheets, and the fact that Respondent has no prior disciplinary record, I believe a lesser penalty is warranted here.

The Advocate did not dispute Respondent's testimony that October 29, 2009, was far from a normal night for the Yankee Stadium Detail, and that immediately after he placed the t-shirts into the trunk of his RMP, he was consumed for hours performing pedestrian and traffic safety duties outside the stadium in the midst of the spontaneous post-game celebration that followed the Yankees' World Series victory. The fact that he quickly became extremely busy for an extended period lends credence to his claim that he simply forgot that he had placed the shirts in the trunk of the RMP.

With regard to the penalties that have been imposed in previous cases, uniformed members who have pleaded guilty and acknowledged that they failed to prepare a Property Clerk's Invoice Worksheet regarding property they had taken into their possession have consistently received penalties consisting of the forfeiture of ten to 15 vacation days.

For example, in Disciplinary Case No. 81958/06 (signed on 12/12/06), a seven-year member who had no prior disciplinary record forfeited ten vacation days after he pleaded guilty to failing an integrity test by neglecting to deliver to the desk officer a bag of clothing he had taken possession of and failing to prepare a Property Clerk's Invoice Worksheet regarding the bag of clothing.

Similarly, in Disciplinary Case No. 85201/09 (signed on 9/17/09), an eight year member who had no prior disciplinary record forfeited 15 vacation days after he pleaded guilty to neglecting to deliver to the desk officer a prisoner's wallet he had taken possession of, and also pleaded guilty to failing to prepare a Property Clerk's Invoice Worksheet regarding the wallet, failing to make an Activity Log entry regarding the wallet, and failing to report to the Internal Affairs Bureau that he had lost the wallet.

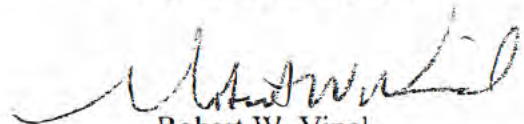
More recently, in Disciplinary Case No. 85426/09 (signed on 9/1/10), a 23-year sergeant who had one prior disciplinary adjudication forfeited ten vacation days after he pleaded guilty to having failed to voucher and process two bags of crack cocaine.

Also, in Disciplinary Case No. 85829/09 (signed on 10/21/10), a four-year officer who had no prior disciplinary record forfeited 12 vacation days after she pleaded guilty to having failed an integrity test in that she neglected to process property that she had been told was cocaine.

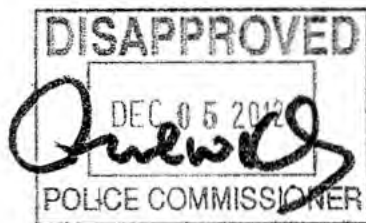
Most recently, in Disciplinary Case No. 4684/11 (signed on 1/5/12), an eight-year officer who had no prior disciplinary record forfeited 15 vacation days after he pleaded guilty to charges that he had failed to voucher property that he had removed from a vehicle he had vouchered and that he had failed to make a proper Activity Log entry regarding the property that he removed from the vehicle.

Consistent with the penalties imposed in the above-cited disciplinary cases, and taking into consideration Respondent's 15 years of unblemished service, I recommend that Respondent forfeit ten vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner Trials



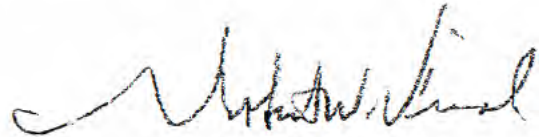
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER OSKAR RODRIGUEZ
TAX REGISTRY NO. 919639
DISCIPLINARY CASE NO. 2010-2372

The Respondent received an overall rating of 4.5 on his 2011 performance evaluation, 4.0 on his 2010 evaluation, and 4.0 on his 2009 evaluation. He has been awarded three Meritorious Police Duty medals. [REDACTED]

[REDACTED] He has no formal disciplinary record and no monitoring records.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner Trials